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File No: EXP202315772

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against NH HOTEL GROUP S.A. (hereinafter referred to as the defendant). After notifying the initiation agreement and analyzing the allegations presented, on March 1, 2024, the proposal for resolution was issued, which is transcribed below:

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Procedure No: EXP202315772 (PS/00490/2023)

PROPOSAL FOR RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out ex officio by the Spanish Agency for Data Protection against the entity, NH HOTEL GROUP S.A. with CIF: A28027944, owner of the website: <https://www.nh-hotels.com/es> for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), and considering the following:

BACKGROUND

FIRST: On 11/12/23, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding the "Cookie Policy" of the aforementioned website, obtained through the "inspect → application" tool of the Google Chrome browser and after clearing the web browser's cache and cookies, and after forcing the browser to download the latest version of the webpage hosted on the remote server:

a).- Regarding the cookies used before the user gives consent:

Upon entering the website <https://www.nh-hotels.com/es> for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on it, it is observed that the website in question uses the following cookies:

- Technical nature cookies:

o _abck

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- Performance cookies: These cookies allow quantifying the number of visits and sources of traffic to evaluate the performance of the site and improve it. They help to know which pages are the most or least visited and how visitors navigate through the website:

o utag_main; AKA_A2; dtPC; dtCookie and ak_bmsc

- Functionality cookies: These allow the website to remember the choices you make (such as your username, language, or the area you are in) and provide better and more personalized features:

o bm_sz; rxVisitor and NHJSESSIONID

- Cookies detected from Google Analytics:

o SOCS; NID; CONSENT and AEC

- Own cookies whose purpose could not be identified:

o prevPágina2; USER_CT_CONTINENT; RT; qb_permanent; bm_sv; qb_session;

USER_CT_COUNTRYCODE; _qubitTracker and qb_generic

- Own cookies whose purpose could not be identified:

o TAPID (provider: .tealiumiq.com)

b).- Regarding the cookie information banner present on the first layer (main page):

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the webpage, a cookie information banner appears with the

following message:

Consent regarding cookies

This website uses its own and third-party cookies to support navigation, improve the user experience, personalize content, display advertising related to your preferences, and perform statistical analysis on browsing habits.

You can change the <> or obtain more information in our <>.

Do you accept these cookies and the processing of the personal data that this implies?

<>

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If non-technical or non-essential cookies are accepted by clicking on the option <>, it is verified that the website continues to use the same cookies detected at the beginning as well as other own and third-party cookies.

If consent is not desired for the use of cookies that are not technical or necessary, one must click on the option <>, through which the website displays the control panel where the groups of cookies appear pre-checked in the “OFF” (disabled) option, except for the strictly necessary cookies group. It is also verified that there is only a <> button.

If one wishes not to give consent for the use of cookies that are not technical or necessary, without moving any of the sliders of the cookie groups to the “ON” position, and by clicking on the <> option, it is verified that the website continues to use the same cookies detected at the beginning.

c).- Regarding the information provided in the second layer (Cookie Policy):

If one accesses the “Cookie Policy” through the link available in the cookie information banner <> or through the link available at the bottom of the page being visited, the website redirects the user to a new page <https://www.nh-hotels.com/es/cookie-policy> where information is provided about: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies through the mechanisms available in the browser installed on the terminal equipment.

d).- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

If the user wishes to modify the consent given, there is the possibility to access the control panel through the link available on the “Cookie Policy” page located at point No. 8. “HOW TO CHANGE COOKIE SETTINGS”.

If one accesses the control panel again, once consent for the use of cookies has been given, it is verified that the slider for the cookie groups is in the “ON” (activated) position. However, if the sliders of the control panel are placed in the “OFF” (disabled) position with the intention of not allowing the use of any cookie that is not technical or necessary and the only existing option <> is clicked, it is verified that the website continues to use cookies that are not technical or necessary.

SECOND: On 01/25/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity, NH HOTEL GROUP S.A. with CIF: A28027944, owner of the website: <https://www.nh-hotels.com/es>, in accordance with the provisions of articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged infringement of article 22.2 of the LSSI, classified as “minor” in article 38.4 g) of the same regulation.

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In the opening agreement, it was determined that the sanction that could correspond, taking into account the existing evidence at the time of the opening and without prejudice to what results from the

instruction, would amount to a total of 10,000 euros (ten thousand euros).

THIRD: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the entity NH HOTEL GROUP S.A. submitted, on 14/02/24, a written statement of allegations regarding the initiation of the file, in which it states the following:

“FIRST. – ON THE INSTALLATION OF COOKIES ON THE TERMINAL DEVICE PRIOR TO USER CONSENT.

The AEPD informs the Company that, upon accessing the Website for the first time and once the terminal device has been cleared of browsing history of cookies, prior to accepting the cookies on the Website or performing any action on it, a series of cookies, both first-party and third-party, are used, the nature of which is not technical.

Below is the list of cookies indicated by the AEPD. For each of them, NH HOTEL GROUP will indicate the explanation of the purpose of each:

1. Google Analytics Cookies: 1) SOCS; 2) NID; 3) CONSENT; 4) AEC

Firstly, regarding the purpose of the four indicated cookies, they are directly related to the reCAPTCHA function of the Website, that is, to detect traffic coming from automated programs or bots. Therefore, according to Opinion 4/2021 of the Article 29 Working Party (hereinafter, “WP 29”), they would be excluded from the requirement of user consent and, consequently, could be installed without the need to obtain consent. Not only that, but they would also be excluded from the scope of application of Article 22.2 of the LSSI and, therefore, it would not be necessary to inform the interested party about their use.

In this regard, this party has noticed that the information provided by the Company in the cookie policy of the Website is outdated, so this party is in the process of updating the text, in such a way that it shows the categorization of the cookies as well as the description of the purposes of each of them in a manner that aligns with the current reality.

2. First-party and third-party cookies whose purpose could not be identified: 1) prevPágina2: this is a legacy first-party cookie whose purpose is to obtain traffic or performance statistics, specifically, to detect referral traffic, that is, the list of pages from which a link has been followed to reach the NH HOTEL GROUP Website. Thus, in principle, cookies that pursue this measurement of traffic are not excluded from obtaining user consent unless they meet the following conditions: • they must have a purpose strictly limited to the exclusive measurement of the...

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audience of the site or application: in this regard, according to the indicated purpose, the analyzed cookie is used solely and exclusively for this purpose; • it must be carried out in the exclusive name of the publisher, in this case, it is a first-party cookie used by NH HOTEL GROUP, in its own name, being the owner of the Website; and • it must be used to produce anonymous statistical data only, a circumstance that in this case complies with this provision since the data obtained does not allow for the identification of the user as it does not collect identifying data.

In this sense, in the notification document of the Start of the Sanctioning Procedure, the AEPD, on page 8, has indicated the following:

“... Therefore, and in general, the AEPD considers that for the correct administration of an Internet site, only the following measurements are strictly necessary: • Audience measurement, page by page; • The list of pages from which a link has been followed to request the current page (sometimes called “referrer”); ...”.

Given this, this cookie would be exempt from obtaining the corresponding consent. In any case, this party has proceeded to eliminate it in the process of updating and reviewing cookies on the Website, a process currently being carried out by NH HOTEL GROUP.

2) USER_CT_CONTINENT and USER_CT_COUNTRYCODE: in this case, we are dealing with first-party cookies of the Company, functional, to assist in navigation based on geolocation and, specifically, it allows identifying the location from which the user accesses in order to display

information according to the continent from which they connect, such as the information of the phone number of the country from which they connect. Given this, since it is a cookie that is necessary to display information based on the location from which the user connects and thus show the appropriate information by location. These cookies, therefore, are not subject to user consent.

3) Tapia's: this party is not familiar with the mentioned cookie, although it considers that there may have been a transcription error and, in that case, it could correspond to the Tealium cookie. In that case, we would be dealing with a functional cookie whose purpose is the launch and display of the cookie banner within the Website and, therefore, necessary for compliance with the applicable obligations in this matter. In this regard, it would be exempt from obtaining user consent for its installation since, in any case, the cookie must be installed prior to the user's consent to, precisely, show users the banner in which they are allowed to grant this consent or, if applicable, not grant it.

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4) RT: This is an Akamai cookie, which is processed solely on behalf of NH HOTEL GROUP, as stated in the service provision contract signed between the parties, and it falls within the category of analytical cookies since its purpose is to measure the performance of web requests and improve the user experience. In this regard, as we mentioned earlier, for analytical cookies to be exempt from obtaining user consent for their installation, the following circumstances must be met:

- They must have a purpose strictly limited to the exclusive measurement of the audience of the site or application: in this regard, according to the stated purpose, the analyzed cookie is used solely and exclusively for this purpose;
- It must be carried out exclusively on behalf of the publisher; in this case, it is a first-party cookie used by NH HOTEL GROUP in its own name, being the owner of the website; and
- It must be used to produce anonymous statistical data only.

Similarly, as we have already mentioned, the AEPD itself has indicated in the notification of the initiation of the sanctioning procedure, page 8, the following:

"...Therefore, and in general, the AEPD considers that for the correct administration of an Internet site, only the following measurements are strictly necessary:

- Audience measurement, page by page; ...".

Given this, this cookie would be exempt from obtaining the corresponding consent.

In any case, this party has proceeded to remove it in the process of updating and reviewing the cookies of the website, a process currently being carried out by NH HOTEL GROUP.

5) bm_sv: Akamai cookie necessary to mitigate bot attacks that could degrade the performance of the website or even render it out of service. This cookie, therefore, according to Opinion 4/2012 of the GT29, would be exempt as it is a user security cookie, meaning it is used to detect erroneous and repeated attempts to connect to the website. Therefore, it would be excluded from the requirement of user consent and, consequently, could be installed without the need to grant consent and, at the same time, would be excluded from the scope of application of Article 22.2 of the LSSI, and thus, it would not be necessary to inform the interested party about its use.

6) qb_permanent, qb_session, _qubitTracker, qb_generic: In this case, we are dealing with four cookies from Qubit, which acts on behalf of NH HOTEL GROUP, that is, as a data processor, and this is duly recorded in the service provision contract signed between the parties. Qubit is a third party whose tool allows modifying the code of the page in the front end of the website.

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third, acting as the data processor, uses these cookies for the purpose of maintaining and implementing solutions in cases where the visual part of the Website does not function correctly to

prevent high incident resolution times. Therefore, although these cookies may be used for different purposes, in this case, they are only used for functional purposes, so that the Website can function correctly. In this regard, user consent would not be necessary for their use. Thus, and in accordance with the explanation provided by this party, the mentioned cookies are necessary for the use, viewing, and protection of the Website or, in the case of analytics, they meet the necessary characteristics to be exempt from requiring user consent for their installation. In any case, in order to comply with the applicable obligations of NH HOTEL GROUP regarding the use of these devices, NH HOTEL GROUP has begun a thorough review process to meet the applicable requirements and ensure transparency with users.

SECOND. – ABOUT THE COOKIE INFORMATION BANNER EXISTING ON THE FIRST LAYER (MAIN PAGE).

Regarding the informative banner on cookies, when accessing the main page of the Website for the first time, the following informative banner appears:

In it, the user is made aware of the following aspects:

1. The identification of the publisher responsible for the website: in the upper right part of the indicated banner, the responsible party for the Website is unequivocally identified, being this identified through the Company logo. Additionally, this information is indicated and expanded in other sections of the Website. These sections include, among others: a. First, the complete cookie policy. In the event that the user wishes to expand the information provided in the cookie banner, there is a link in it, which redirects them directly to the cookie policy, where the information provided in that first informative layer is detailed. Upon accessing the cookie policy, the information displayed at the beginning of it is the specific identity of NH HOTEL GROUP, indicating the CIF and the registered office of the owner of the Website: b. Legal notice: the identity of the owner of the Website is indicated, as well as the registered office, CIF, and commercial registry of the same. c. Privacy policy: as is the case in the legal notice, the privacy policy details the identity, as well as the contact information.
2. Generic information about the purposes for which they will be used: as can be observed, it indicates the different purposes, in a manner

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generic, developing each of the specific purposes for cookies in the second layer.

3. Use of own and third-party cookies: this indication is included in the cookie banner, with the aim of informing users about the use of third parties on the Website. Similarly, the details of third parties are included in the cookie policy.

4. Acceptance, rejection, and configuration of cookies: likewise, the banner on the Website provides the option to accept and configure cookies. Thus, NH HOTEL GROUP is currently working on modifying it to comply with the new requirements of the AEPD in this regard.

On the other hand, as stated in this document, NH HOTEL GROUP is in a review process to ensure that the banner and cookie policy are updated and provide interested parties with information in compliance with the principle of transparency, as well as with the applicable guidelines in this matter.

THIRD. – ON THE CONSENT TO THE INSTALLATION OF COOKIES ON THE TERMINAL DEVICE.

In accordance with what is stated in the first allegation of this document, the cookies mentioned in the initiation of the sanctioning procedure sent to this party, the cookies that are installed on users' devices, regardless of whether they consent to it, are cookies that are necessary for the operation of the Website. That is, these are technical and/or functional cookies whose purposes are directly related to the display and proper functioning of the website or its security.

As already stated, regarding the cookies indicated by the AEPD, there are certain analytical cookies, although it is true that they meet the necessary requirements so that they are not subject to user consent, as previously explained. Thus, cookies that require user consent are not installed unless consent has been granted by the user, as they are subject to this.

In light of this, by virtue of the above, it is important to emphasize this party's strict respect for the rights and freedoms of individuals, and specifically for the protection of their data, which reinforces the diligence shown by the Company, as well as its efforts and proactivity in ensuring and protecting the privacy of the interested parties.

Notwithstanding the above, and due to this party's scrupulous respect for data protection regulations

and its willingness to cooperate with this Agency, it should be emphasized that my client accepts any type of improvement proposal or recommendation from the AEPD regarding compliance with the regulations, as well as its willingness to carry out any actions or improvements that the AEPD deems necessary.

Therefore, I REQUEST:

FROM THE SPANISH AGENCY FOR DATA PROTECTION to kindly accept this document, to consider the statements contained herein as made, and, in its merits, to consider the response to the allegations in response to the initiation of the sanctioning procedure of the file with reference number EXP202315772 as answered.

FIRST OTHER MATTER: that this party requests that the proposed sanction not be imposed as this party expresses its willingness to comply with the applicable regulations and, therefore, is in a process of updating to rectify any possible existing non-compliance and, at the same time, to archive the Sanctioning Procedure.

I REQUEST: that the previous statements be considered made for the appropriate purposes.

FOURTH: On 15/02/23, this Agency carried out the following diligence regarding the "Cookie Policy" of the aforementioned website, obtained through the "inspect -> application" tool of the Google Chrome browser and after clearing the browser's cache and cookies, and after forcing the browser to download the latest version of the webpage hosted on the remote server:

a).- Regarding the cookies used before the user gives consent:

Upon entering the website <https://www.nh-hotels.com/es> for the first time, after clearing the terminal device of browsing history and cookies, without accepting new cookies or taking any action on it, it is observed that the website in question uses the following cookies:

- Technical nature cookies:

Cookies

Domain

Description

_abck

.nh-hotels.com

This cookie is used to determine whether the traffic on the website is automated traffic generated by IT systems or by a human user.

_GRECAPTCHA

.google.com

Google reCAPTCHA sets a necessary cookie (_GRECAPTCHA) when it is executed in order to

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cookies

Domain

Description

provide your risk analysis.

-

Performance cookies: which allow quantifying the number of visits and traffic sources to evaluate and improve site performance. They help to know which pages are the most or least visited and how visitors navigate the website:

cookies

Domain

Description

utag_main

.nh-

hoteles.com

This cookie is associated with the Tealium data platform and is used for web traffic analysis.

AKA_A2

.nh-

hoteles.com

This cookie is set by Akamai and helps improve web performance.

_abck

.nh-

hoteles.com

This cookie is used to analyze traffic to determine whether it is automated traffic generated by IT systems or by a human user.

RT

.nh-

hoteles.com

Akamai Boomerang sets this cookie, which measures the visitor's experience with page load times.

-

Functionality cookies: allow the website to remember choices you make (such as your username, language, or the area you are in) and provide more personalized features.

cookies

Domain

Description

bm_sz

.nh-

hoteles.com

This cookie is set by the Akamai Bot Manager provider and is used to manage interaction with online bots. It also helps in fraud prevention.

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cookies

Domain

Description

NHJSESSIONID

.nh-

hoteles.com

This cookie stores the session ID, which groups related requests to the server and assigns them to a session.

qb_permanent

.nh-

hoteles.com

This cookie is set by the Qubit provider. This cookie is used to store all permanent data and also helps replace all other permanent cookies.

qb_generic

.nh-

hoteles.com

This cookie is set by the Qubit provider. This cookie is used to enhance the user experience.

qb_session

.nh-

hoteles.com

This cookie is set by the Qubit provider. This cookie is used to store all session data.

_qubitTracker

.nh-

hoteles.com

This cookie is set by the Qubit provider. This cookie is used to provide a unique Qubit ID for each visitor.

-

Cookies detected from Google Analytics:

cookies

Domain

Description

SOCS

.google.com

Its purpose could not be detected

NID

.google.com

Google tracks users and uses the data collected from most of these services to profile the interests of web users and sell advertising space to organizations based on such interest profiles, as well as to align ads with the content of the pages where their clients' ads appear.

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cookies

Domain

Description

CONSENT

.google.com

This cookie provides information on how the user uses the website and any advertising they have seen before visiting that website.

AEC

.google.com

Its purpose could not be detected

-

Cookies detected from third parties:

cookies

Domain

Notes

TAPIDO

.tealiumiq.com

Tealium sets this cookie to install a unique identifier when a visitor first accesses and thus track visitors across domains.

-

Own cookies whose purpose could not be identified:

cookies

Domain

Notes

bm_mi

.nh-

hoteles.com

There is also no information about this cookie in the "Cookie Policy" of the website

USER_CT_CON

TINENT

.nh-

hoteles.com

As reported on the website's "Cookie Policy" page, "this cookie is used to identify the continent of a user" and is classified as "mandatory"

bm_sv

.nh-

hoteles.com

There is also no information about this cookie in the "Cookie Policy" of the website

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cookies

Domain

Observations

USER_CT_COUNTRYCODE

.nh-hotels.com

There is also no information about this cookie in the "Cookie Policy" of the website.

b).- Regarding the cookie information banner present on the first layer (main page):

Upon entering the website for the first time, after clearing the terminal device of browsing history and cookies, without taking any action on the webpage, a cookie information banner appears with the following message:

Consent regarding cookies

This website uses its own and third-party cookies to support navigation, improve user experience, personalize content, display advertising related to your preferences, and conduct statistical analysis on browsing habits. You can change the <> or obtain more information in our cookie policy.

Do you accept these cookies and the processing of the personal data that this implies?

<>

If cookies that are not technical or necessary are accepted by clicking on the <> option, it is verified that the website continues to use the same cookies detected at the beginning, as well as other own and third-party cookies.

If consent is not desired for the use of cookies that are not technical or necessary, you must click on the <> option, through which the website displays the control panel where the cookie groups appear pre-checked in the "OFF" (disabled) option, except for the strictly necessary cookie group. It is also verified that there is only a <> button.

If consent is not desired for the use of cookies that are not technical or necessary, without moving any of the sliders of the cookie groups to the "ON" position, and clicking on the <> option, it is verified that the website continues to use the same cookies detected at the beginning.

c).- Regarding the information provided in the second layer (Cookie Policy):

If you access the "Cookie Policy" through the link available in the cookie information banner <> or through the link available at the bottom of the page being visited, the website redirects the user to a new page <https://www.nh-hotels.com/es/cookie-policy> where information is provided about: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies through the mechanisms available in the browser installed on the terminal device.

d).- Regarding the possibility of modifying the consent given regarding cookies, at any time during web navigation.

If the user wishes to modify the consent given, there is the possibility to access the control panel through the link available on the "Cookie Policy" page located at point No. 8.

If the control panel is accessed again, once consent for the use of cookies has been given, it is verified that the slider of the cookie groups is in the "ON" (activated) position. However, if the sliders of the control panel are set to the "OFF" (disabled) position with the intention of not allowing the use of any cookies that are not technical or necessary and the <> option is clicked, it is verified that the website continues to use cookies that are not technical or necessary.

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First: In the verification carried out by this Agency on 11/12/23, of the website

<https://www.nh-hotels.com/es>, the following characteristics were recorded in its "Cookie Policy":

a).- Regarding the cookies used before the user gave consent, it was verified that the website used the following cookies:

- Technical cookies:

- o _abck

- Performance cookies:

- o utag_main; AKA_A2; dtPC; dtCookie and ak_bmsc

- Functionality cookies:

- o bm_sz; rxVisitor and NHJSESSIONID

- Cookies detected from Google Analytics:

- o SOCS; NID; CONSENT and AEC

- Own cookies whose purpose could not be identified:

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- o

- prevPage2; USER_CT_CONTINENT; RT; qb_permanent; bm_sv;

- qb_session; USER_CT_COUNTRYCODE; _qubitTracker and qb_generic

-

Third-party cookies whose purpose could not be identified:

- o

- TAPIDMás (provider: .tealiumiq.com)

b).- Regarding the cookie information banner present on the first layer (main page):

Upon entering the website for the first time, after clearing the terminal device of browsing history and cookies, without performing any action on the webpage, a cookie information banner appeared which, in addition to providing information about the cookie policy, allowed for two actions regarding cookies:

-

Accept all cookies.- If the option <> was clicked, intending to accept all cookies, it was verified that the website continued to use the same cookies detected upon accessing the website, as well as other first-party and third-party cookies.

-

Manage cookies or reject them.- If consent was not desired for the use of cookies that were not technical or necessary, or if the user wished to manage the use of cookies, they had to click on the <> option, through which the website displayed the control panel where the groups of cookies appeared pre-checked in the "OFF" option (deactivated), except for the strictly necessary cookies group. It was verified that there was only one button <>.

If the user did not wish to give consent for the use of cookies that were not technical or necessary, without moving any of the sliders of the cookie groups to the "ON" position, and clicked on the <> option, it was verified that the website continued to use the same cookies detected at the beginning of the browsing session, both first-party and third-party.

c).- Regarding the information provided in the second layer (Cookie Policy):

The information in the "Cookie Policy" dealt with: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses, and how to manage cookies through the mechanisms available in the browser installed on the terminal device.

d).- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

If the user wished to modify the consent given by accessing the control panel through the link available in the "Cookie Policy," it was verified that the sliders for the cookie groups were in the "ON" position (activated).

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If the sliders for the cookie groups were moved to the “OFF” position (deactivated), intending not to allow the use of any cookies that were not technical or necessary, and the only existing option <> was clicked, it was verified that the website continued to use cookies that are not technical or necessary. Second: After receiving the allegations regarding the initiation of the file, this Agency, on 15/02/24, conducted a re-examination of the “Cookie Policy” of the website <https://www.nh-hotels.com/es>, documenting the following characteristics in its “Cookie Policy”:

a).- Regarding the cookies used before the user gave consent, it was verified that the website used the following cookies:

-

Technical cookies:

o

_abck and _GRECAPTCHA

-

Performance cookies:

o

utag_main; AKA_A2; _abck and RT

-

Functionality cookies:

o

bm_sz; NHJSESSIONID; qb_permanent; qb_generic; qb_session;
_qubitTracker

-

Cookies detected from Google Analytics:

o

SOCS; NID; CONSENT; AEC

-

First-party cookies whose purpose could not be identified:

o

bm_mi; USER_CT_CONTINENT; bm_sv and USER_CT_COUNTRYCODE

-

Third-party cookies whose purpose could not be identified:

o

TAPID (provider: .tealium.com)

b).- Regarding the cookie information banner present on the first layer (main page):

Upon entering the website for the first time, after clearing the terminal device of browsing history and cookies, without performing any action on the webpage, a cookie information banner appeared which, in addition to providing information about the cookie policy, allowed for two actions regarding cookies:

-

Accept all cookies.- If the option <> was clicked, intending to accept all cookies, it was verified that the website continued to use the same cookies detected upon accessing the website, as well as other first-party and third-party cookies.

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using the same cookies detected when accessing the website, as well as other first-party and third-party cookies.

- Manage cookies or reject them. - If consent was not desired for the use of cookies that were not technical or necessary, or if the management of cookie usage was desired, one had to click on the <> option, through which the website displays the control panel where the groups of cookies appear pre-checked in the "OFF" option (disabled), except for the group of strictly necessary cookies. It was verified that there was only a <> button.

If consent was not desired for the use of cookies that were not technical or necessary, without moving any of the sliders of the cookie groups to the "ON" position, and one clicked on the <> option, it was verified that the website continued to use the same cookies detected at the beginning of the browsing session, both first-party and third-party.

c).- Regarding the information provided in the second layer (Cookie Policy):

The information in the "Cookie Policy" dealt with: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies through the mechanisms available in the browser installed on the terminal device.

d).- Regarding the possibility of modifying the consent given regarding cookies at any time during web browsing.

If the user wished to modify the consent given by accessing the control panel through the link in the "Cookie Policy," it was verified that the slider for the cookie groups was in the "ON" position (activated).

If the sliders for the cookie groups were moved to the "OFF" position (disabled), with the intention of not allowing the use of any cookies that were not technical or necessary, and one clicked on the only existing option <>, it was verified that the website continued to use cookies that are not technical or necessary.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Response to the allegations presented

a).- Regarding the installation of cookies on the terminal device prior to the user's consent:

In its written allegations, the entity states that the detected Google Analytics Cookies (SOCS; NID; CONSENT; and AEC) are directly related to the reCAPTCHA function of the website, that is, to detect traffic from automated programs or bots and therefore, according to Opinion 4/2021 of the Article 29 Working Party (hereinafter, "GT 29"), they would be excluded from the requirement for user consent and, consequently, could be installed without the need to grant consent.

Regarding Google Analytics Cookies, it is important to highlight that in the "Terms of Service for Google Analytics," established between Google Ireland Limited and the entity that formalizes the Contract for the use of analytical cookies, it is stated in the "Privacy" section that the contractor "must

disclose the use of Google Analytics and how this Service collects and processes data.

This can be done by prominently displaying a link to the page "How Google uses information from sites or apps that use our services," which can be found at www.google.com/policies/privacy/partners or any other URL that Google may provide at the time.

"7. Privacy

You must not send hashed or otherwise encrypted information to Google that Google may consider personally identifiable information or use it as such, nor should you allow a third party to do so or assist them in doing so, except as permitted by the policies or terms of the functions of Google Analytics that have been made available to you, and only if the information sent to Google in relation to that function of Google Analytics has been hashed according to industry standards. You must have an appropriate Privacy Policy and comply with it. You must also comply with all applicable laws, policies, and regulations related to the collection of information from Users. You must also publish a Privacy Policy that notifies of the use of cookies, mobile device identifiers.

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(for example, the Advertising Identifier for Android or the Advertising Identifier for iOS) or similar technology that you use to collect data. Furthermore, you must disclose the use of Google Analytics and how this Service collects and processes data. You can do this by providing a prominent link to the page "How Google Uses Information from Sites or Apps That Use Our Services," which can be found at www.google.com/policies/privacy/partners/ or any other URL that Google may provide at the time.

You must take commercially reasonable steps to ensure that Users receive complete and clear information about the storage of cookies and access to them or any other information on Users' devices, and that they give their consent regarding this when such activity occurs in relation to the Service and when the law requires providing such information and obtaining such consent.

Through the aforementioned link, the following information is accessed:

Google's advertising services are testing new ways to publish and measure digital advertising that better protect users' privacy online through the Privacy Sandbox initiative on Chrome and Android. Users who have enabled the relevant Privacy Sandbox settings on Chrome or Android will be able to see relevant ads from Google's advertising services based on Topics or Protected Audience data stored in their browser or mobile device. Google's advertising services may also measure ad performance with attribution reporting data stored in their browser or mobile device. More information about Privacy Sandbox

HOW GOOGLE USES INFORMATION FROM WEBSITES OR APPS THAT USE OUR SERVICES

A large number of websites and applications use Google services to enhance their content and offer it for free. By integrating our services, these websites and applications share information with Google. For example, when you access a website that uses advertising services like AdSense, which includes analytics tools like Google Analytics or embeds video content from YouTube, the web browser automatically sends certain information to Google. The data we receive includes the URL of the page you accessed and its IP address, among others. We may also place cookies in your browser or read those already stored in it. Applications that use Google advertising services also share information with us such as the name of the application and a unique identifier for advertising.

Google uses the information shared by websites and applications to provide, maintain, and improve its services, develop new services, measure the effectiveness of advertising, protect users against fraud and abuse, and personalize the content and ads that appear on

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Google or on the websites and applications of our partners. Please refer to the privacy policy for more

information on how we handle data for each of these purposes and the advertising page for more information about Google ads, how your information is used in the context of advertising, and how long Google retains this information.

Our Privacy Policy explains the legal grounds on which we rely at Google to process our users' information. For example, we may process it with your consent or to pursue legitimate interests such as offering, maintaining, and improving our services with the aim of meeting users' needs.

Sometimes, when we process information that a website or application has shared with us, that website or application first asks users if they consent to us processing their information. For example, a banner may be displayed on a website asking users if they consent to Google processing the data that the website collects. In such cases, we will respect the purposes described in the consent given to the relevant website or application, rather than relying on the legal grounds stipulated in our Privacy Policy. If any user wishes to modify or withdraw their consent, they must do so from the relevant website or application. (...)

Therefore, Google uses the information shared by websites and applications to provide, maintain, and improve its services, develop new services, measure the effectiveness of advertising, protect users against fraud and abuse, and personalize the content and ads that appear on Google or on the websites and applications of our partners.

Thus, the cookies detected from Google Analytics are not exempt as the information they collect is used for purposes other than those claimed.

Regarding the own cookies whose purpose could not be identified, the entity states that the cookie "prevPágina2" is an own cookie whose purpose is to obtain traffic or performance statistics, the cookies "USER_CT_CONTINENT" and "USER_CT_COUNTRYCODE" are functional own cookies, to assist navigation based on geolocation, and the cookie "bm_sv" is an Akamai cookie necessary to mitigate bot attacks.

Regarding the cookie "RT", the entity states that it is an Akamai cookie, which is processed solely on behalf of NH HOTEL GROUP, as stated in the service provision contract signed between the parties, and would fall within the category of analytical cookies as its purpose is to measure the performance of web requests and improve the user experience.

Notwithstanding the above, the entity does not present the service provision contract that it claims to maintain with "Akamai," nor is this circumstance reported on the website.

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Regarding the cookies "qb_permanent, qb_session, _qubitTracker, qb_generic," it is stated that they are cookies from Qubit, which acts on behalf of NH HOTEL GROUP, that is, as the data processor, and this is duly recorded in the service provision contract signed between the parties.

However, similar to what occurs with "Akamai," the entity does not present a contract or proof that corroborates the allegations made, nor does it inform of this possible situation on its website.

Regarding the cookie "Tapid," the entity states that it is a functional cookie whose purpose is to launch and display the cookie banner on the website. However, it has been verified that, in addition to being a third-party cookie, the purpose of this cookie is to install a unique identifier when the visitor accesses for the first time, thus tracking visitors across domains.

In light of this, we must again remind that Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices, and in particular, about the purposes of data processing. This information must be provided in accordance with the provisions of the GDPR. Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations (the corresponding prior consent of the user), unless they are necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user: those used to fill out forms, or for managing a shopping cart; authentication or user identification cookies (session cookies); user security cookies (those used to

detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface customization cookies; and some plug-in cookies for sharing social content.

Regarding cookies used to obtain traffic or performance statistics, they may be exempt from consent under certain conditions. To be limited to what is strictly necessary for the provision of the service and, therefore, be exempt from consent in accordance with Article 22.2 of the LSSI, these cookies, or similar technologies, must have a purpose strictly limited to the exclusive measurement of the audience of the site or application. This processing must be carried out exclusively on behalf of the publisher and used to produce anonymous statistical data only; they must not lead to the data being matched with other processing operations or to the data being transmitted to third parties.

Furthermore, they must not allow for the aggregated tracking of the navigation of the person using different applications or browsing different websites.

In the present case, during the verification carried out on 15/02/24 on the website in question, the use of first-party and third-party cookies that were not of a technical or necessary nature was again detected without the prior consent of the user;

- Google Analytics Cookies: SOCS; NID; CONSENT; AEC

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Functional cookies: NHJSESSIONID

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Third-party cookies:

- o “Tapid” whose domain belongs to Tealium and its purpose is to track visitors across domains.

- o “RT and bm_sv” whose domain belongs to Akamai

- o “qb_permanent, qb_session, _qubitTracker, and qb_generic” whose domain belongs to Qubit,

b).- Regarding the existing cookie information banner on the first layer (main page):

Concerning the cookie information banner that appears at the beginning of web navigation, it has been noted that it generically identifies the purposes for which cookies will be used and whether they are first-party or also third-party; it informs about the type of data that will be collected and includes information on how the user can accept, configure, and reject the use of cookies, thus not contradicting the provisions established in the current regulations.

c).- Regarding consent for the installation of cookies on the terminal device:

At this point, the entity states in its allegations that the cookies installed on users' devices, regardless of whether the user gives their consent, are cookies that are necessary for the functioning of the website. That is, these are technical and/or functional cookies whose purposes are directly related to the display and proper functioning of the website or its security.

However, as stated in section a), the detected cookies from Google Analytics are not exempt and must be previously consented to by the user, as the information they collect is used for purposes other than those alleged, and on the other hand, third-party cookies (from Tealium, Akamai, and Qubit) are being used without the prior consent of the user.

d) Regarding the withdrawal of consent given.

In the case at hand, it was verified that if one accesses the control panel again, intending to modify the consent given for the use of cookies, and moves the sliders of the cookie groups from the “ON” (activated) position to the “OFF” (deactivated) position, the website continues to use cookies that are not technical or necessary.

III

Committed infringement

From the deficiencies detected regarding the cookie policy on the website

<https://www.nh-hotels.com/es>, namely, the use of cookies that are not technical or necessary without

the prior consent of the user; the impossibility of rejecting or managing cookies in a granular manner and the impossibility of withdrawing consent once given for the use of cookies that are not technical or necessary constitute a violation of Article 22.2 of the LSSI, as it establishes the following:

“Service providers may use storage and data retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data. When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications. The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent strictly necessary, for the provision of a service of the information society expressly requested by the recipient.”

In view of the above, the following

PROPOSAL FOR RESOLUTION

First: That the Director of the Spanish Agency for Data Protection sanctions the entity NH HOTEL GROUP S.A. with CIF: A28027944, owner of the website: <https://www.nh-hotels.com/es>, for the alleged infringement of Article 22.2 of the LSSI, classified under Article 38.4 g) of the same regulation, with a fine of 10,000 euros (ten thousand euros).

Second: Likewise, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed fine, which will result in a 20% reduction of the amount.

With the application of this reduction, the fine would be set at 8,000 euros (eight thousand euros) and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the fine.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the cited Article 85.2, it must make it effective by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the cause, by C/ Jorge Juan, 6

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voluntary payment, reducing the amount of the fine. Furthermore, the proof of payment must be sent to the General Subdirectorato of Inspection to proceed with closing the file.

In accordance with the provisions of Article 76.4 of the LOPDGDD and given that the amount of the imposed fine exceeds one million euros, the information identifying the offender, the infringement committed, and the amount of the fine will be published in the Official State Gazette. Therefore, you are notified of the above and are informed of the procedure so that within TEN DAYS you may present any arguments you consider in your defense and submit any documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

José Pablo Lozoya Martín.

THE INSTRUCTOR OF THE PROCEDURE

ANNEX

List of documents in the Procedure PS/0490/2023,

1 Documentation

3. Agreement to initiate the sanctioning procedure.

4. Allegations to the initiation agreement and attached documents.

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SECOND: On March 22, 2024, the respondent has proceeded to pay the fine in the amount of 8,000 euros, making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the fine, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

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Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,
the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: DECLARE the termination of the procedure EXP202315772, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: NOTIFY this resolution to NH HOTEL GROUP S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

968-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

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